

Monday, September 13, 2021

VIA FEDERAL EXPRESS

Department of Homeland Security
United States Citizenship and Immigration Services
Attn: N-400
2501 S State Hwy Business
Suite 400
Lewisville, TX 75067

Re: Written Explanation
N-400, Application for Naturalization
Page 15, Part 12, Question 35
Applicant: Jesus Antonio Izaguirre Paz
COB/CON: Mexico

This letter serves as a written explanation for page 15, part 12, question 35 of the enclosed N-400, Application for Naturalization (the “Application”).

As indicated in the Application, applicant Jesus Antonio Izaguirre Paz was previously placed in removal proceedings.

That removal proceeding was initiated in error. Specifically, the Department of Homeland Security (the “Department”) made an error of fact in believing that Mr. Izaguirre had accrued unlawful presence in the United States.

The Department subsequently admitted the mistake, and requested the termination of the removal proceedings. The immigration court granted the request.

Below is a summary of the relevant facts. This letter encloses all of the exhibits listed below in order of appearance.

1. On or around March 22, 2010, Mr. Izaguirre filed an application for adjustment of status to permanent residency (the “AOS Petition”) with the Department of Homeland Security (the “Department”). (Exhibit A). The AOS petition was based on a previously approved immigrant petition for an alien worker. (Exhibit B). Mr. Izaguirre’s prior employer, the University of Notre Dame (the “Employer”), had previously sponsored that petition. (*Id.*).
2. On or around March 23, 2011, the Department denied the AOS Petition. (Exhibit C). As grounds for denial, the Department stated that a notice for Mr. Izaguirre to appear in

immigration court for removal proceedings had previously been filed (the “Notice”). (*Id.*). The Department concluded that, since the Notice initiated removal proceedings, it lacked jurisdiction to adjudicate the AOS Petition. (*Id.*).

3. On or around March 23, 2011, the Department provided Mr. Izaguirre with a copy of the Notice (Exhibit D). The Notice indicated that removal proceedings started because, according to the Notice, Mr. Izaguirre had previously overstayed in the United States. (*Id.*). Specifically, the Notice alleged that a prior H-1B status had expired on May 31, 2009, and that Mr. Izaguirre had stayed in the United States beyond that period without authorization. (*Id.*)
4. Immediately after March 23, 2011, Mr. Izaguirre provided evidence that he had never overstayed his visa and/or status. (Exhibit E). The evidence showed that, prior to May 31, 2009, the Employer had successfully petitioned for the extension of Mr. Izaguirre’s H-1B status from May 31, 2009 to May 31, 2010. (*Id.*)
5. On or around March of 2011, the Department agreed to join Mr. Izaguirre in asking the immigration court to terminate the removal proceedings. (Exhibit F).
6. On or around April 1, 2011, the immigration court granted the joint request from the Department and Mr. Izaguirre and to terminate the removal proceedings. (*Id.*)
7. On or around May 29, 2012, the Department finally approved the AOS Petition. (Exhibit G).

Having held permanent residency for more than five (5) continuous calendar years, Mr. Izaguirre is now filing the Application in request of U.S. citizenship.

Sincerely,

SYMPLE

By: Marcel S. Oliveira
Petition Preparer

MSO
Encls.